

**SENATE SUBSTITUTE FOR
HOUSE BILL NO. 6043**

A bill to amend 1973 PA 116, entitled
"An act to provide for the protection of children through the
licensing and regulation of child care organizations; to provide
for the establishment of standards of care for child care
organizations; to prescribe powers and duties of certain
departments of this state and adoption facilitators; to provide
penalties; and to repeal acts and parts of acts,"
(MCL 722.111 to 722.128) by adding sections 6b and 6c.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 6b. (1) The Tri-Share child care program is established**
2 **in the department of lifelong education, advancement, and potential**
3 **for the continuation of the child care pilot project originally**
4 **initiated and funded under section 1047(31) of article 5 of 2020 PA**
5 **166. The department of lifelong education, advancement, and**



1 potential shall establish eligibility criteria for participation in
2 the program. An employer may participate in the program if the
3 employer covers at least 1/3 of the costs of an employee's child
4 care costs. Notwithstanding this subsection, an employer may elect
5 to contribute more than 1/3 of the costs of an employee's child
6 care cost, up to and including the full costs of an employee's
7 child care costs.

8 (2) The Tri-Share child care fund is created within the state
9 treasury.

10 (3) The state treasurer may receive money or other assets from
11 any source for deposit into the fund. The state treasurer shall
12 direct the investment of the fund. The state treasurer shall credit
13 to the fund interest and earnings from fund investments.

14 (4) Money in the fund at the close of the fiscal year must
15 remain in the fund and not lapse to the general fund.

16 (5) The department of lifelong education, advancement, and
17 potential is the administrator of the fund for auditing purposes.

18 (6) The department of lifelong education, advancement, and
19 potential shall expend money from the fund, on appropriation, to do
20 both of the following:

21 (a) Administer the program established under subsection (1).

22 (b) Fund child care facilitator hubs.

23 (7) If a child care facilitator hub is established on or after
24 October 1, 2026, the hub must be a nonprofit organization, limited
25 liability company, C-corporation, S-corporation, or sole
26 proprietor.

27 (8) This section must not be construed to require any employer
28 to contribute to the cost of child care for its employees.

29 (9) As used in this section and section 6c:



1 (a) "Fund" means the Tri-Share child care fund created in
2 subsection (2).

3 (b) "Program" means the Tri-Share child care program
4 established in subsection (1).

5 Sec. 6c. (1) The CareShare arrangement is established as a
6 voluntary employer-employee cost-sharing arrangement for qualified
7 child care expenses in which the employer contributes not less than
8 1/3 of the qualified child care expense for the enrolled child, and
9 the employee pays the balance. The department administers the
10 CareShare arrangement but state subsidy is not provided under the
11 CareShare arrangement.

12 (2) An employer that has applied to participate in the program
13 but has been placed on a wait list because of funding limitations
14 may elect to participate in the CareShare arrangement if the
15 employer remains on the wait list for the program. The employer is
16 subject to the same administrative requirements as an employer that
17 participates in the program, but state subsidy must not be provided
18 under the CareShare arrangement.

19 (3) Before a CareShare arrangement is finalized, the
20 department shall establish a process for determining whether an
21 employee is eligible for existing state child care subsidies.
22 Employers shall notify employees of this requirement and collect
23 confirmation from the employee or directly from the department
24 before commencing the CareShare arrangement cost-sharing.

25 (4) This state shall not provide subsidy under a CareShare
26 arrangement.

27 (5) The department shall promulgate rules to ensure a
28 CareShare arrangement is structured, documented, and reported in a
29 manner that is consistent with the program. Employer participation



1 in the CareShare arrangement must be offered on a uniform basis to
2 all eligible employees. An employer shall not condition
3 participation on union membership status, collective bargaining
4 status, seniority, hours worked, or other nonuniform employment
5 criteria, except as otherwise required by federal or state law.

6 (6) A child care arrangement may not receive a CareShare
7 arrangement contribution and a state subsidy.

8 (7) An employer shall not discharge, discipline, refuse to
9 hire, or otherwise retaliate against an employee for requesting to
10 participate or participating in a CareShare arrangement. An
11 employee who alleges a violation of this subsection may file a
12 complaint with the department of lifelong education, advancement,
13 and potential within 180 days after a discharge, discipline,
14 refusal to hire, or retaliation in violation of this subsection.
15 After notice and opportunity to respond, the department of lifelong
16 education, advancement, and potential may order make-whole relief
17 including reinstatement and lost wages and may assess a civil fine
18 of not more than \$1,000.00 per violation. A party aggrieved by a
19 final order of the department may seek judicial review as provided
20 under the administrative procedures act of 1969, 1969 PA 306, MCL
21 24.201 to 24.328.

22 (8) The department shall submit an annual public report to the
23 governor and the chairs of the standing committees of the senate
24 and house of representatives with jurisdiction over child care and
25 appropriations. The report must include all of the following
26 information:

27 (a) The number of employers, employees, and children
28 participating in the CareShare arrangement.

29 (b) The average employer and employee contributions.



1 (c) Provider participation.

2 (d) The department's administrative costs.

3 (9) This section must not be construed to expand state subsidy
4 obligations beyond those provided under the Tri-Share child care
5 program.